

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FAISAL ASGHAR, *Claimant*

v.

MOHIB TRADING LLC, CH TRADERS LLC, AND RSA
GLOBAL LOGISTICS LLC, *Respondents*.

DOCKET NO. 2055(I)

Served: August 20, 2026

ORDER OF: Debra L. TESH, *Small Claims Officer*.

ORDER REJECTING CLAIMANT’S PETITION FOR RECONSIDERATION¹

On March 20, 2026, Faisal Asghar (“Claimant”) filed an informal complaint (“Claim”), along with accompanying exhibits, alleging that Respondents Mohib Trading LLC (“Mohib”), CH Traders LLC (“CH”), and RSA Global Logistics LLC (“RSA”) (collectively “Respondents”), violated 46 U.S.C. § 41102(c) of the Shipping Act.

On March 24, 2026, a Notice of Filing of Small Claims Complaint and Assignment (“NOF”), together with a copy of the Claim, was individually served on Respondents advising them that they were each required to file a response to the Claim by April 20, 2026. The NOF also advised each Respondent to indicate whether it consents to the adjudication of the Claim under the informal procedures set forth in Subpart S of the Commission’s Rules of Practice and Procedure at 46 C.F.R. §§ 502.301-305. *See* NOF.

After service of the Claim, Claimant and Mohib exchanged multiple emails copying the Office of Administrative Law Judges (“OALJ”). OALJ repeatedly requested that the parties cease sending communications until a Small Claims Officer (“SCO”) is assigned and issues an order requesting additional information or documents. *See* Judges’ Emails April 8, 17, 27, and June 22, 2026.

On April 9, 2026, Respondent Mohib sent two of the aforementioned party emails setting forth Mohib’s position in this matter and included a list of costs it allegedly incurred in association with the shipment. *See* April 9, 2026 Emails.

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within thirty (30) days of service. The filing of a petition for reconsideration shall act as a stay of the review period described in the Commission Rule 304(g). 46 C.F.R. § 502.304(h). Upon issuance of a decision or order on reconsideration by the Small Claims Officer, the review period prescribed in Commission Rule 304(g) will recommence. *Id.*

On April 19, 2026, Respondent RSA acknowledged receipt of the NOF but did not follow instructions to file a formal response as required by 46 C.F.R. § 502.304(e). CH neither acknowledged receipt of the NOF, nor filed a formal response to the Claim as required. *Id.*

On June 30, 2026, the Chief Administrative Law Judge issued a Notice of Assignment (“NOA”) assigning this proceeding to the undersigned as SCO for adjudication. *See* NOA. Because no Respondent indicated lack of consent to the Small Claims procedures, the Commission’s Rules at 46 C.F.R. §§ 502.301-305 govern adjudication of the Claim.

On July 7, 2026, an Order to Show Cause (“Order”) was issued advising all Respondents that a response must be filed by July 21, 2026, or each would be deemed to have waived its right to participate in the proceeding. 46 C.F.R. § 502.304(e). OALJ did not receive a formal response from any Respondent by the due date. As previously noted, Mohib’s April 9, 2026 emails will be considered as its argument. The July 7, 2026, Order also directed Claimant to respond to requests for additional information and documents by July 21, 2026. *See* Order.

On July 17, 2026, Claimant responded to the Order and provided additional information and documents. *See* C. Resp. Order.

On July 27, 2026, an Initial Decision was issued in this matter. The Initial Decision denied and dismissed the Claim against Respondent Mohib because Claimant did not meet his burden to prove that Respondent’s alleged conduct constituted a practice occurring on a normal, customary, and continuous basis.² *See* Initial Decision; *see also* 46 C.F.R. § 545.4.

On July 30, 2026, Claimant filed a Petition for Reconsideration (“Petition”). Claimant’s petition asserts that the SCO failed to analyze two issues of material fact: Respondent Mohib’s demand for payment of additional shipping-related charges in order to release his vehicle; and Respondent Mohib’s demand for \$12,000 to settle a debt between CH and Mohib. *See* Petition.

Commission Rule 304 governs petitions for reconsideration. 46 C.F.R. § 502.304(h). The rule limits the grounds upon which such petitions may be filed and provides that the Commission will summarily reject a petition unless it:

- (1) Specifies that there has been a change in material fact or in applicable law, which change has occurred after issuance of the decision or order;
- (2) identifies a substantive error in material fact contained in the decision or order;
- (3) addresses a material matter in the Small Claims Officer's decision upon which the petitioner has not previously had the opportunity to comment.

Petitions which merely elaborate upon or repeat arguments made prior to the decision or order will not be received. 46 C.F.R. § 502.304(h).

² Claimant’s Petition only requests reconsideration of the Claim against Mohib.

Claimant's Petition does not satisfy the grounds for reconsideration set forth in Rule 304. First, Claimant does not assert that there has been any change in material fact or applicable law after issuance of the July 27, 2026 Initial Decision. Second, Claimant does not identify a substantive error in a material fact contained in the Initial Decision. Rather, Claimant contends that the SCO failed to address material facts concerning Mohib's demands for additional payment and refusal to release Claimant's vehicle. Third, Claimant had a full opportunity to address the elements required to demonstrate a violation of the Shipping Act under 46 U.S.C. § 41102(c). Accordingly, the Petition does not establish a permissible ground for reconsideration under Rule 304. 46 C.F.R. § 502.304(h).

Although the Petition must be summarily rejected, the SCO addresses Claimant's contention that the Initial Decision failed to consider material facts concerning Respondent Mohib's demands for additional inappropriate charges and refusal to release Claimant's vehicle. *See* Petition. Claimant specifically asserts that the SCO failed to consider Exhibit A, the vehicle title identifying Claimant as owner; Exhibit E2, an email demanding additional funds related to CH's debt to Mohib; and Exhibit H, a statement from CH confirming that it shipped Claimant's vehicle to Mohib for delivery to Claimant.

Contrary to Claimant's assertion, the Initial Decision expressly found that Claimant is the titled owner of the Mercedes-Benz VIN WDDUG8CB9FA126066 (FF 5); that Claimant fully paid freight charges to CH, who shipped the vehicle to Mohib as the appointed shipping agent (FF 7); and that Mohib demanded payment of additional charges for release of the vehicle (FF 11). Thus, the Initial Decision did not overlook the material facts identified in the Petition.

Notwithstanding those findings, the Claim was denied because Claimant failed to establish that Mohib was a regulated entity subject to the Commission's jurisdiction, and that the challenged conduct occurred on a normal, customary, and continuous basis as required to establish a violation of 46 U.S.C. § 41102(c). *See* 46 C.F.R. § 545.5(a)-(e). The July 7, 2026 Order specifically directed Claimant to provide information and documentation establishing that Mohib was a regulated entity within the Commission's jurisdiction and demonstrating that the allegedly unreasonable practice occurred on a normal, customary, and continuous basis. *See* Order.

In response, Claimant did not address whether Mohib was a regulated entity. Regarding the normal, customary, and continuous requirement, Claimant asserted that Mohib's "repeated demands for payment, refusal to release the vehicle, and communications concerning settlement while continuing to retain Claimant's property" satisfied that requirement. Claimant further stated that he was unaware of any other individuals or entities who experienced similar conduct by Respondent. *See* C. Resp. RFI, at Q2, Q3.

The Commission has expressly stated that section 41102(c) is not a remedy for isolated shipments or one-time unreasonable acts. 46 C.F.R. § 545.4; *Interpretive Rule, Shipping Act of 1984*, 83 FED. REG. 64478, 64479; *see also Crocus Investments, LLC v. Marine Trans. Logistics, Inc.*, Docket No. 15-04, 2021 WL 3732849, at *8 (FMC Aug. 18, 2021). Nothing in Claimant's Petition for Reconsideration or supplemental evidence alters the fact that this matter concerns a

single shipment and alleges an isolated occurrence rather than a practice within the meaning of the statute.

Accordingly, because Claimant has failed to establish any of the grounds for reconsideration in 46 C.F.R. § 502.304(h), the Petition for Reconsideration must be summarily rejected.

As stated in the Initial Decision, the ruling is limited to violations of the Shipping Act. Claimant may file for relief under common law principles in the appropriate forum or report criminal conduct to the proper authorities.

Therefore, it is **ORDERED** that Claimant's Petition is **REJECTED**.

SO ORDERED

DEBRA L.

TESH -S

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Debra L. Tesh
Small Claims Officer